

25STCV08334 25STCV08334

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 25STCV08334 Hearing Date: June 24, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

24, 2026 TRIAL DATE: July 26, 2027

CASE: Juan Flores, et al. v. Nissan North American, Inc.

CASE NO.: 25STCV08334

MOTION

TO COMPEL SANCTIONS PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE § 871.26

MOVING PARTY: Plaintiff

Juan Flores

RESPONDING PARTY: No opposition

I. INTRODUCTION

This is a

Song-Beverly action. On April 8, 2026, Plaintiff,

Juan Flores, filed this motion to compel, Defendant, Nissan North America, Inc.

to provide the complete production of documents and written disclosure of

information as required under Code of Civil Procedure (CCP) sections 871.26,

subdivisions (b) and (h). Plaintiff also

requests sanctions against Defendant's counsel in the amount of \$2,500 as

required under CCP § 871.26(j)(1).

The motion
is unopposed.

II. LEGAL STANDARD

CCP section 871.26 allows for an expedited
discovery and resolution process in “lemon law” matters:

(b)

Within 60 days after the filing of the answer or other responsive pleading, all
parties shall, without awaiting a discovery request, provide to all other
parties an initial disclosure and documents pursuant to subdivisions (f), (g),
and (h).

...

(h) The defendant or manufacturer shall
provide the following documents to all other parties pursuant to the timelines
prescribed in subdivision (b):

(1) Copy of or access to a version of
the owner's manual for a motor vehicle of the same make, model, and year.

(2) Any warranties issued in conjunction
with the sale of the motor vehicle.

(3) Sample brochures published for the
motor vehicle.

(4) The motor vehicle's original
invoice, if any, to the selling dealer.

(5) Sales or lease agreement, if the
manufacturer is in possession.

(6) Motor vehicle information reports,
including build documentation, component information, and delivery details.

(7) Entire warranty transaction history for the motor vehicle.

(8) Listing of required field actions applicable to the motor vehicle.

(9) Published technical service bulletins ("TSBs") for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(10) Published information service bulletins ("ISBs") for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle.

(12) Warranty policies and procedure manuals.

(13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.

(14) If a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint.

(15) If a pre-suit restitution or replacement request is made, the manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(16) If a pre-suit restitution or replacement request is made, any nonprivileged, prelitigation evaluation.

(17) Any warranty extensions or modifications issued by the manufacturer on the motor vehicle.

(CCP, § 871.26(b), (h).)

In the event a defendant fails to timely provide these disclosures, CCP section 871.26 requires that the court sanction defendant's counsel \$2,500.00 for each such failure:

(j) Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

(2) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c).

(CCP, § 871.26(j)(1)-(2).)

III. DISCUSSION

The court will grant the motion. Defendant filed its Answer to the Complaint on August 1, 2025. Defendant was therefore required to provide initial disclosures under CCP section 871.26 by September 30, 2025. However, to date, Defendant has not produced any documents. (See Hill Decl.) The court finds that Defendant violated the mandatory provisions of CCP section 871.26(h). Defendant does not present any argument to the contrary.

Monetary Sanctions

Plaintiff

requests sanctions against Defendant's counsel.

Given the court's ruling, and Defendant's failure to show good cause, sanctions are mandatory under CCP section 871.26(j)(1).

Therefore, the court imposes sanction of \$2,500.00 against Defendants counsel. Sanctions are to be paid within 15 business days.

IV. CONCLUSION

Plaintiff Juan Flores's motion is GRANTED. Defendant Nissan North America, Inc. is ordered to comply with the initial disclosure requirements under Code of Civil Procedure section 871.26(h) within 15 days of this order.

Plaintiff's request for sanctions against Defendant's counsel is granted in the total amount of \$2,500.00, payable within 15 business days.

Moving Party to give notice.

Dated: June 24, 2026

Brock T. Hammond

Judge of the Superior Court